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June 5, 2026

Haverhill City Council
Haverhill City Hall
4 Summer Street
Haverhill, MA 01830

Re: Zoning Opinion Letter
512 Washington Street, Haverhill, MA 01832

Ladies and Gentlemen:

As counsel for Essex County Habitat for Humanity (the "Applicant") in connection with an application for Special Permit for proposed improvements on real estate known as 512 Washington Street, Haverhill, Essex County, Massachusetts ("the Premises").

In connection with this opinion, we have examined the following documents:

- (1) "Zoning Ordinance of the City of Haverhill, Massachusetts" (the "Bylaw"), and the Zoning Map (the "Zoning Map") incorporated in the Bylaw;
- (2) Legal Memorandum filed by counsel for the Board of Appeals Application by the Borrower (attached hereto);

The Property is situated in a High-Density Residential Zoning District (RH). Per the Bylaw, Chapter 255, what the Applicant is proposing is defined as "dwelling, multifamily." §8.2 of the Bylaw specifically addresses the allowance of multifamily dwellings in the RH district. It allows multifamily dwellings by Special Permit issued by the City Council, provided that all conditions outlined in §8.2.2 are met.

Conditions for Eligibility Under §8.2.2:

- 1) The development shall be served by both public water and sewerage systems.

This project will be served by public water and sewer.

- 2) The maximum continuous length of any building facade in any one direction shall not exceed 200 feet, and for attached dwellings (townhouses or row house), the minimum number of units in a row shall be three and a maximum of 10 units (but not to exceed 200 feet). There shall be a minimum of 40 feet between buildings or townhouse rows.

The project does not propose attached dwellings, but instead proposes three (3) detached structures, none of which have a façade exceeding 200 feet.

A Variance from the Board of Appeals for the requirement of a minimum of 40 feet between buildings has been granted.

- 3) The plan and the roadway and respective utility improvements in the tract shall be subject to the definitive plan and performance guaranty requirements of the Rules and Regulations Governing the Subdivision of Land in the City of Haverhill, Massachusetts.

This project does not involve the subdivision of any land. It is one lot that will contain "dwelling, multifamily" as defined by the Bylaw. Therefore, this requirement is not applicable.

- 4) The services of a consultant to act as a Clerk of the Works, directly responsible to the City Engineer, to assure that proper construction practices are implemented according to any standards or procedures set forth by the City Council as a condition for the issuance of the required special permit and according to the subdivision plans and specifications approved by the Planning Board, shall be required, upon the written recommendation of the City Engineer, for any multifamily development where new roadway and/or utility systems are required. Said Clerk shall be selected and reimbursed as outlined within § 10.7.

This project does not involve the construction of a new roadway or utility systems; therefore this requirement is not applicable.

- 5) The developer shall install street identification signs on all rights-of-way and drives within the development. Said signs shall be in place upon completion of final paving of each respective way or drive.

This project does not involve the construction of any new roadways; therefore this requirement is not applicable.

- 6) The developer shall install streetlighting on all rights-of-way and drives within the development. The lighting shall be in place prior to paving of each respective way or drive.

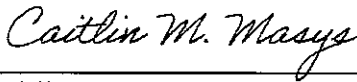
This project does not involve the construction of any new roadways; therefore this requirement is not applicable.

Based on the foregoing, it is our opinion that the proposed project on the Premises consisting of an existing historical house being renovated into a three-unit building, and the construction of a duplex on either side of the existing house, adding an additional four (4) housing units to the Property is allowed under the Bylaw with the requisite approved Variances by the Board of Appeals and the requisite approved Special Permit to be issued by the City Council. Upon issuance of those approvals and the proper recording thereof, this project complies with all provisions of the Bylaw.

This letter is being furnished to you for your use and the use of your other City departments and is not to be disseminated, reproduced or relied upon by any other person or entity without our prior written consent, except as may be required by any federal, state or local agencies, departments or offices. The limitations herein expressed are an integral part of this opinion, and no opinions on other matters not expressly stated herein are intended, nor should they be inferred.

Very truly yours,

DOWNEY LAW GROUP LLC

A handwritten signature in cursive script that reads "Caitlin M. Masys". The signature is written in dark ink and is positioned above a horizontal line.

Caitlin M. Masys, Esq.